

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF YEGOROV AND OTHERS v. RUSSIA

(Applications nos. 64942/19 and 25 others –
see appended list)

JUDGMENT

STRASBOURG

6 April 2023

This judgment is final but it may be subject to editorial revision.



In the case of Yegorov and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Peeter Roosma*, President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 16 March 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The applicants were represented by lawyers of former Memorial Human Rights Centre, Moscow.

3. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

4. The list of applicants and the relevant details of the applications are set out in the appended table.

5. The applicants complained of the disproportionate measures taken against them as participants of public assemblies. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

6. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as participants of public assemblies, namely the dispersal of these assemblies, as well as the applicants' arrest followed by their conviction for administrative offence. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

III. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. The applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its findings in the light of its well-established case-law (see *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Kalyapin v. Russia*, no. 6095/09, § 76, 23 July 2019, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, concerning different aspects of unlawful deprivation of liberty of the organisers or participants of public events; and *Karelin v. Russia*, no. 926/08, 20 September 2016, concerning examination of criminal cases in the absence of a prosecuting party in the judicial proceedings governed by the Federal Code of Administrative Offences (CAO)).

IV. REMAINING COMPLAINTS

13. Some applicants further raised additional complaints under Articles 5 and 6 of the Convention concerning other aspects of their detention and fairness of the administrative-offence proceedings. In view of the above findings, the Court considers that there is no need to deal separately with these remaining complaints.

14. Lastly, the applicants in applications nos. 65114/19 and 670/20 also raised other complaints under various Articles of the Convention.

15. The Court has examined these complaints and considers that, in the light of all the material in its possession and in so far as the matters complained of are within its competence, these complaints either do not meet the admissibility criteria set out in Articles 34 and 35 of the Convention or do not disclose any appearance of a violation of the rights and freedoms enshrined in the Convention or the Protocols thereto.

It follows that this part of the applications must be rejected in accordance with Article 35 § 4 of the Convention.

V. APPLICATION OF ARTICLE 41 OF THE CONVENTION

16. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

17. Regard being had to the documents in its possession and to its case-law (see, in particular, *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Declares* the complaints concerning the dispersal of the public assembly and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, *decides* that it is not necessary to examine the other aspects of the complaints raised by some applicants under Articles 5 and 6 of the Convention, and *declares* the remainder of applications nos. 65114/19 and 670/20 inadmissible;

3. *Holds* that these complaints disclose a breach of Article 11 of the Convention concerning the dispersal of the public assembly;

4. *Holds* that there has been a violation of the Convention as regards the other complaints raised under the well-established case-law of the Court (see appended table);

5. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 6 April 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina Acting Deputy Registrar	Peeter Roosma President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	64942/19 18/12/2019	**Georgiy Vladimirovich YEGOROV** 1997	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	compulsory works of 20 hours	Moscow City Court 04/09/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and escorting to a police officer for the purpose of drawing up a record of administrative offence on 27/07/2019: no evidence/ assessment that it was impracticable, on the spot, to compile the offence record and to achieve the objectives set out in the CAO; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
2.	64946/19 18/12/2019	**Grigor Levonovich GASPARYAN** 1963	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 12,000	Moscow City Court 12/09/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to a police office on 27/07/2019 for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
3.	65072/19 18/12/2019	**Timofey Valeryevich GAVRICHKOV** 1989	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 04/09/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, and detention between 27/07/2019 and 29/07/2019 as administrative suspect: no evidence/ assessment of "exceptional circumstances" under the CAO; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
4.	65114/19 18/12/2019	**Yevgeniy Igorevich KOLYAKOV** 1986	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 15,000	Moscow City Court 28/08/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest, escorting to a police station, and detention between 27/07/2019 and 29/07/2019: no evidence/ assessment of "exceptional circumstances" under the CAO; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
5.	65133/19 18/12/2019	**Aleksey Sergeyevich SVIRSHCHEVSKIY** 1982	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 18,000	Moscow City Court 04/09/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and escorting to a police station on 27/07/2019 for the sole purpose of drawing up a record of administrative offence, detention in excess of three hours: no evidence/ assessment that it was impracticable, on the spot, to compile the offence record and to achieve the objectives set out in the CAO (administrative offence record compiled on 30/07/2019); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
6.	65144/19 18/12/2019	**Yelena Vladimirovna GOLUBEVA** 1974	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 08/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to a police station on 27/07/2019, detention in excess of three hours, for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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7.	65180/19 18/12/2019	**Andrey Dmitriyevich CHEGODAYEV** 1990	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	20 hours of community service	Moscow City Court 08/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to a police station on 27/07/2019, in excess of three hours, for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
8.	65202/19 18/12/2019	**Yasha Mikhaylovich FINKELBERG** 1998	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 15,000	Moscow City Court 08/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to the police station and detention between 27/07/2019 and 29/07/2019 as administrative suspect, no evidence/ assessment of "exceptional circumstances" under the CAO, detention beyond the three-hour statutory period, and after the administrative offence record had been compiled on 28/07/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
9.	65205/19 18/12/2019	**Konstantin Valeryevich BAZROV** 1992	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 02/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to a police station on 27/07/2019, detention in excess of three hours, for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
10.	65211/19 18/12/2019	**Oleg Yuryevich IVANOV** 1994	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 06/09/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to a police station and detention there on 27/07/2019 for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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11.	65291/19 18/12/2019	**Aleksandr Valeryevich STAMIKOV** 1970	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 16/09/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, detention on 27/07/2019 in excess of three hours, for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
12.	65292/19 18/12/2019	**Lidiya Vladimirovna TYUKOVA** 1952	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 20/08/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to the police station, and detention there on 27/07/2019 in excess of three hours, for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
13.	65294/19 18/12/2019	**Timur Orifdzhanovich RAFIYEV** 1973	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 30/08/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to the police station, and detention there on 27/07/2019 in excess of three hours, for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
14.	63/20 18/12/2019	**Vladislav Olegovich TRETYAKOV** 1992	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 10/09/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, and detention on 27/07/2019 in excess of three hours for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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15.	630/20 18/12/2019	**Yaroslav Vladimirovich BYSTROV** 1973	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 30/08/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, and detention on 27/07/2019 in excess of three hours for the sole purpose of drawing up a record of administrative offence (administrative offence record compiled on 30/07/2019); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
16.	670/20 18/12/2019	**Dmitriy Aleksandrovich KIRYUKIN** 1998	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6 of CAO	10 days of administrative detention	Moscow City Court 05/08/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, and detention between 27/07/2019 and 29/07/2019 as administrative suspect: no evidence/ assessment of "exceptional circumstances" under the CAO, detention beyond the three-hour statutory period, and after the administrative offence record had been compiled on 28/07/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	5,000
17.	692/20 18/12/2019	**Aleksey Vasilyevich TIKHOMIROV** 1961	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 26/08/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, and detention there on 27/07/2019 for the sole purpose of drawing up a record of administrative offence (the administrative offence record compiled on 31/07/2019); Art. 6 (1) - lack of impartiality of tribunal - absence of a prosecuting party in the administrative proceedings.	4,000

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18.	1914/20 27/12/2019	**Denis Vladimirovich SIMONOV** 1976	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 28/08/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, and detention there on 27/07/2019 for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
19.	2278/20 24/12/2019	**Ilya Valeryevich BALAKIN** 1998	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 12/09/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to a police station, and detention there on 27/07/2019, in excess of three hours, for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
20.	2784/20 23/12/2019	**Polina Aleksandrovna BOGDANOVA** 1994	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15.000	Moscow City Court 10/09/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to a police station, and detention there on 27/07/2019, in excess of three hours, for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
21.	3021/20 23/12/2019	**Vladimir Vyacheslavovich BAZANOV** 1976	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 04/09/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, and detention there on 27/07/2019 in excess of three hours, for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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22.	3031/20 23/12/2019	**Arseniy Alekseyevich AMURSKIY** 1984	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	8 days' administrative detention	Moscow City Court 01/08/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and detention between 27/07/2019 and 29/07/2019 as administrative suspect: no evidence / assessment of "exceptional circumstances" (the administrative offence record compiled on 27/07/2019); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	5,000
23.	5864/20 17/01/2020	**Andrey Aleksandrovich DEGTYAREV** 1996	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 30/08/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station and detention there on 27/07/2019 as administrative suspect (the administrative offence record compiled on 31/07/2019); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
24.	5938/20 17/01/2020	**Danil Dmitriyevich KULESHOV** 2001	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 16/09/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to a police office, and detention on 27/07/2019 as administrative suspect (the administrative offence record compiled on 30/07/2019); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
25.	5998/20 17/01/2020	**Sergey Pavlovich POPOV** 1981	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 10/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, and detention between 27/07/2019 and 29/07/2019 as administrative suspect: no evidence/assessment of any "exceptional circumstances" (administrative offence record compiled on 29/07/2019); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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26.	6070/20 22/01/2020	**Andrey Mikhaylovich NAUMOV** 1987	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 22/08/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to a police station, and detention there on 27/07/2019 in excess of three hours, for the sole purpose of drawing up a record of administrative offence (the administrative offence record compiled on 31/07/2019); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

[1] Plus any tax that may be chargeable to the applicants.